

4 STEPS YOU CAN TAKE TO HELP JEWS

Choose Jewish Burial

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WHEN HASHEM FIRST informed Adam Harishon that he came from the earth, He also told him that he would one day return to the earth, *"ki afar atah v'el afar tashuv"* (Bereishis 3:19). Reb Chaim Vital explains that our bodies are given to us on deposit for safekeeping and, when the time arrives, we must return them to the earth from which they came, as the passuk says, *"ad shuvcha el ha'adamah, ki mimenu lukachta"* (Bereishis, *ibid.*). In fact, it is not only a debt, it is a *mitzvas aseh min hatorah*,

as the passuk states, *"Kavor tikberenu bayom hahu"* (Devarim 21:23). Accordingly, in the Torah, burial is taken as a given. The Torah describes the burials of Sarah, Avraham, Yitzchak, and Yaakov. Yosef's last request was to be buried in Eretz Yisroel and Moshe Rabbeinu was buried by Hashem Himself.

Sadly, a large percentage of Jews are cremated after their passing. More than fifty percent of Americans who died in 2015 were cremated. That was five years ago. Imagine how high those numbers are today. Though the numbers are likely a little lower in the Jewish community, they are still frighteningly high. In 2011, more than one-third of Jewish people who passed away were cremated.

What can we do to stem the tide and help more Jews receive a proper Jewish burial?

Like with everything else, the more prepared we are, the more we will succeed. This article will present four steps that shluchim have taken to position them for success in this field.

1.

Cultivate a Relationship With the Funeral Home

The first and most important step is to cultivate a working relationship with the funeral home so that you can make Jewish funerals available to your Jewish community.

An Act of Murder

ממכתב ד' טבת תשמ"ג, מענה לא' השלוחות ששאלה במכתבה באיזה הסבר יכול הבן להסביר לאביו שלא ישרפו גופתו לאחר מותו:

להרוצה, ר"ל, שישרפו גופו לאחר המיתה – יש לומר ברור ובפשטות שלהגוף יש לו קיום "ומעין חיים" גם לאחר סילוק הנשמה, וכל זמן שלא נרקב הגוף לגמרי, חלק מהנשמה קשור בו. וכל המצוה או מסכים לשריפת גופו – ה"ז הסכמה לשרוף חלק מהנשמה – מעין שריפת אדם חי (אלא שלא כולו אלא חלקו (אכזריות מאין כמוה)) ואפילו בשרוף נשמת עצמו ר"ל ומצדיק עצמו שלא ידע מה עושה.

להטענה שעוד כמה אנשים עשו כן – הרי אלפי נאצים שרפו אנשים חיים ממש – וביניהם מדענים רופאים, סוחרים, בעלי משפחה וכו'.

The following letter, dated 3 Teves, 5743, was written to a shlucha who asked what a son can tell his father to dissuade him from cremation:

If someone desires, G-d forbid, to be cremated after his passing, he should be told clearly and simply that the body continues to exist and retains some form of life even after the soul's departure. So long as the body has not completely decomposed, part of the neshamah is still tied to the body. One who instructs or agrees to cremation agrees to burn a part of the neshamah—which is comparable to burning a living person. (The only difference is that he is not burning the entire neshamah but only part of it (an action of unparalleled cruelty)). The same is true even if one agrees to burn his own neshamah, G-d forbid, justifying himself by saying that he didn't realize the extent of his actions.

With respect to the argument that many people have been cremated: Thousands of Nazis—including doctors, businessmen, heads of families, etc.—burned living people.

"When you think about it," says Rabbi Levi Dubinsky, shliach to Mountain Lakes, New Jersey, "our first effort must be directed toward making Jewish burial available to our communities." Many shluchim live in locations that don't have a chevra kadisha, Jewish cemetery, or funeral homes that cater to

the Jewish community. When Rabbi Dubinsky arrived on shlichus, he introduced himself to the local funeral homes and pitched the idea of servicing the Jewish community. He arranged for one of the chevra kadishas in New Jersey to meet with the funeral homes and explain the process. The funeral homes

agreed, and suddenly Jewish burial became available right in Mountain Lakes. People were grateful to learn that they would no longer need to travel great distances to arrange a proper burial with a taharah, etc.

Today, it is the funeral homes that suggest Jewish burial to Jewish families and who recommend Rabbi Dubinsky as the rabbi on staff. This serves as a vehicle to introduce the shliach to Jewish families that he might otherwise have never met. In addition, the funeral home can open doors that a shliach cannot. No matter how friendly we are, we are still somewhat intimidating to people who don't know us and especially to recently bereaved families. When the family's funeral director introduces the shliach as a friendly and accommodating rabbi, doors open more easily. Similarly, hearing from a non-Jewish funeral director that they are probably not interested in cremation because they are Jewish is often more effective than hearing it from a rabbi. When a Jewish family walks into the funeral home in Mountain Lakes, the funeral director hands them a copy of *The Jewish Mourner's Companion*, by Rabbi Zalman Goldstein (Jewish Learning Group, 2008). This exposes them to the Jewish approach to everything from end-of-life issues to the year of mourning. When they read this book, half our work is done.

Not every funeral home was receptive to Rabbi Dubinsky, but, he says, if you shop around you will find a funeral home that is

interested in the business. And because it is a business, it doesn't cost the shliach a penny. The funeral home absorbs the expenses of the taharah. They purchase all the necessary items, including *The Jewish Mourner's Companion*, and provide the facility free of charge. Moreover, the funeral homes view this as a business opportunity and, therefore, advertise in the Jewish community. In Rabbi Dubinsky's case, one of the funeral homes sponsors the High Holiday invitation and Yizkor book as well as the Pesach brochure. Over time, two of the non-Jewish funeral directors became supporters of the Chabad House.

This, says Rabbi Dubinsky, does not mean that cremations no longer occur in the area, but the option for Jewish burial is now available. Over the last few years, at least fifteen Jewish burials were performed that might otherwise not have happened.

2.

Raise The Subject

After cultivating a relationship with the local funeral homes, Rabbi Meir Moscowitz, regional director of Chabad-Lubavitch in Illinois, says that the next important step is education. Rabbi Yosef Chaim Kantor, head shliach of Thailand, agrees. Burial, says Rabbi Kantor, is not an easy subject to raise on a sunny Sunday afternoon, but if we don't raise it and influence these



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Rabbi Moscovitz raises the subject in sermons, shiurim, and personal conversations. He dedicates at least one of his High Holiday sermons to this subject and makes a point of raising it several times throughout the year. Rabbi Kantor introduces the subject in his weekly emails. In these emails, Rabbi Kantor reviews the events of the previous week. If dur-

ing the week an event of note occurred with respect to a funeral or a passing, he uses it as a platform to discuss the importance of Jewish burial. For example, if he has a conversation about cremation, he recounts it in his email the following Friday and shares the arguments he made for burial and against cremation with the entire community.

Rabbi Kantor explains that most people are not opposed to burial. They simply are unaware that burial is important to Jews. Once he

explains the reasons and the consequences, most people agree to provide their loved ones with eternal rest. To ensure that their wishes are known, he encourages people to document their wishes in writing, preferably with two witnesses. This way no one would consider cremating just because they didn't make their wishes known.

Rabbi Kantor's emails literally save Jews from cremation. On one occasion, Jonathan, one of his readers, replied to Rabbi

Kantor's email about burial, saying that he intended to ensure that his own father had proper arrangements for a Jewish burial. Shockingly, Jonathan himself passed away a little while later. When Rabbi Kantor heard that his family was considering cremation, he sent them a copy of Jonathan's email to demonstrate that Jewish burial was important to Jonathan. Jonathan was brought to kever Yisrael, but only because Rabbi Kantor had raised the subject in his

Will They Come Back?

ARE PEOPLE WHO WERE cremated eligible for *techiyas hameisim*?

Bereishis Rabbah 28:3 states that the *luz* bone cannot be pulverized or destroyed by fire. Thus, those who are cremated against their wishes (such as the *kedoshim* of the Holocaust) will return at *techiyas hameisim*. However, those who wish to be cremated are in the category of *kofer bit'chiyas hameisim* (*Shu"t Minchas Elazar* 2:34), and do not merit *techiyas hameisim* (*Sanhedrin* 10:1). (The Rebbe explains [*Igros Kodesh*, vol. 1, pp. 142-153] that even such people will return, but in a different body.) However, this only applies to those who know about *techiyas hameisim* and understand that through leaving instructions for cremation they are denying this very precept. The vast majority of Jews today are likely in the category of *tinok shenishbah* and are, therefore, eligible to return.

Nevertheless, as a deterrent against cremation, the poskim agree that we do not bury the ashes in a Jewish cemetery (*Shu"t Minchas Elazar*, *ibid.*, and others). Moreover, we do not sit shivah for someone who was cremated (*Shu"t Minchas Elazar*, *ibid.*), though saying Kaddish and doing mitzvos *le'iluy nishmasam* is encouraged (*Shu"t Chasam Sofer Even Haezer* §69).

email.

Rabbi Moscovitz points out that the key is to be passionate about the subject. If the shliach feels that this is important, it will come across that way to the people. He tells a story about a funeral that he was slated to officiate. The night before the funeral he learned that

the family was not planning to perform a taharah. When he learned that they didn't want to spend the extra money that taharah entails, he offered to have the funds deducted from his fee. When the family saw how important it was to him, they consented to the taharah.

When writing or speak-

ing about this subject, Rabbi Moscovitz suggests that it is best to open the subject by telling a personal story, something in which you were involved. For example, Rabbi Moscovitz once called a friend upon learning that his mother had passed away. It turned out that the family was in the car on the way to cremation. As is often the case, the primary reason was the steep price of burial. Because Rabbi Moscovitz had taken the time to cultivate a warm relationship with the local funeral home, he was able to arrange a reduced price for the family and they turned back from the crematorium at the last moment. The man was very grateful and could not thank the rabbi enough. The following Acharon Shel Pesach, this man came to shul and Rabbi Moscovitz related the story in his Yizkor sermon. The man felt like a hero and the message about Jewish burial was brought home to the community in a moving and personal way.

When Rabbi Moscovitz visits a severely ill patient in the hospital, he invites the family to a different room and asks them if they have made arrangements for burial. If they have, he asks to review the arrangements. On one occasion, he left a copy of *The Jewish Mourner's Companion* with a woman who insisted on cremating her husband. A week later, her husband passed away and she decided to bury him. The reason: she had spent a week in the hospital sitting beside her ill husband. With nothing to do, she had read the entire companion. By the time she was finished, she understood the importance of a Jewish burial.

3.

Da Mah Shetashiv

If we want to educate our community properly, we must first study the subject so that we have the answers to the questions that people ask.

Rabbi Elchonon Zohn, renowned authority on Jewish burial, director of the Vaad Harabonim of the Queens Chevra Kadisha, and founder and director of the Association of Chevros Kadisha, explains that the most important point to convey is that we continue to live after the body has passed away. Once people appreciate that there is life after the body's passing, they can appreciate that what we do to our body is important because it can affect us.

Rabbi Zohn points out that people are motivated by different concerns and it is critical that we ascertain the reason a family or an individual is opposed to burial.

Some people are simply not aware of the consequences. For such people, we need to explain that "*veharuach tashuv el ha'elokim asher nesanah*" depends on "*veyashov he'afar el haaretz keshehaya*" (*Koheles* 12:7)." Only after the body is returned to the earth from which it came, can the neshamah return to the heavens from which it came (*Yalkut Shimoni*, Nach 998). This doesn't mean that the neshamah is stuck on earth if the body is not buried, but the neshamah is clearly impeded on some level by the lack of a burial. If we had a choice,

says Rabbi Zohn, to live with a healthy body or a disabled body, which would we choose? Once we realize that cremation hampers the neshamah with a disability of some kind, we want to choose burial.

Sometimes, says Rabbi Zohn, the concern is related to visitation. People don't want to burden their children with the need to visit their grave or the guilt of not visiting. They figure that with cremation, they can place some of their ashes in each child's living room and thus spare them the need to visit. Such people must be taught that they will not be in their urn. Ashes and bone grinds are what's left after the body has been obliterated. They contain no trace of the body, as evidenced by the halachic fact that ashes don't carry tumah. It certainly does not contain traces of the soul. The Jewish name for a cemetery is Beis Hachaim because the neshamah hovers around the grave for the first twelve months and returns whenever we visit (*Zohar II* 14b, *Sefer Chassidim* 709-710). The soul never hovers over the urn because its body is not in the urn. In fact, Rabbi Zohn points out that, unlike a grave, urns are eventually discarded. A family might preserve it for several decades or generations, but with time, it ends up in the garbage. Is that really where we want to end up? If they want a memento of themselves in the homes of their children, they can preserve their hair the next time they get a haircut and have it sent to their children after their passing.

Some people say that cremation is better for the

environment because it doesn't take up space in the ground. If you ever walk by a crematorium while they incinerate a body, you will notice that the entire span of sky above the building is blackened by thick smoke. When you consider the amount of fossil fuel it takes to run a crematorium for nearly two hours and the toxins that are released into the environment, you quickly realize that burial is much cleaner. Today there is a movement called Green Burial. It advocates for biodegradable caskets, no concrete vaults, and no embalming. This is precisely what a Jewish burial is like.

Some people are afraid that if everyone were buried it would use up the landmass. This misconception is born of

living in overcrowded urban environments. When you consider how little space a grave takes up and how much land is available in rural areas, you realize that every metropolis is surrounded by more than enough land to provide cemetery space for thousands of years.

Because the family is provided with a clean urn that contains the loved one's remains, some people assume cremation is a swift, clean, and simple process. These people might be swayed simply by learning just how gruesome the process really is. You can invite them to watch a video of cremation at www.peacefulreturn.com. After two or more hours of intense burning with the flesh crackling and sizzling, the

brain bubbling, and the awful stench of incinerated hair and flesh, only bone grinds remain. Since bone shards aren't appealing in an urn, they are swept up and pulverized for another half hour until what appears as smooth ash remains. When you look at it, you see ash, but you are really looking at pulverized bones. Do you really want to do that to your loved one?

Some people will claim that this doesn't matter to them since it is merely the body and not the person that will be cremated. Firstly, consider the halachah that we must watch what we say in the presence of the deceased until the interment (*Shabbos* 152b) because the neshamah is still present beside it. This means that the deceased is forced to watch the



cremation of his or her own body. Imagine the anguish this causes them. Moreover, the Rebbe writes that a trace of the neshamah is bound to the body until it has decomposed (see sidebar on facing page). This means the body is being cremated with a part of the soul inside it. There is little difference between cremating a body with a complete soul and cremating a body with a partial soul. Can you imagine doing this to your loved one? Finally, the Talmud tells us that a body is to a neshamah what a scroll is to the Torah (Mo'ed Katan 25a, see Ritva ad loc.). As the holiness of the Torah seeps into the parchment so does the holiness of the neshamah seep into the body. Just as we can't imagine burning a Torah scroll, so should we never imagine cremating a body.

Most of the arguments discussed above can only be raised if you are having the discussion in advance. Once the person has passed on, many of these arguments are either too indelicate to raise or completely irrelevant. At this point the family is usually concerned about one of two things: either their loved one's wishes or the exorbitant cost of burial.

Let's begin with the loved one's wishes. One of the most common arguments is that people feel bound by the deceased's wishes. If the deceased expressed a desire for cremation, it is difficult for the family to go against their wishes even though halachah requires it. Rabbi Zohn gently suggests that the family consider a comparison. Suppose your loved one left instructions for you to cut off his big toe and keep it as a memento,

would you obey this instruction? If you wouldn't do it to a single toe, don't do it to the entire body.

Rabbi Asher Deren, shliach to Cape Town, South Africa, took a different approach. He once met a woman and her daughter shortly after the mom's father passed away. When he learned that they were planning to cremate, he observed gently that it had been barely seventy years since millions of Jews were cremated and we should not add salt to that wound. The woman agreed, but explained that her father had expressly asked to be cremated. Rabbi Deren replied with a parable. Suppose your father left instructions for his estate to be invested with a particular investment firm, but you discovered that the firm was nothing but a Ponzi scheme, would you obey his wishes? You would clearly understand that his instructions were based on erroneous assumptions. The same, explained Rabbi Deren, applies here. You know that cremation is not a good option, so invest in a funeral. The family promised to think about it, but when they failed to follow up, Rabbi Deren called them the next day and offered to cover the expenses. The family agreed, but the body was already at the crematorium and was scheduled to be cremated first thing in the morning. Rabbi Deren had them arrange for someone to come to the crematorium early in the morning and they reclaimed the body at the very last minute. Shortly thereafter, the man was brought to kever Yisrael.

The most common reason

that people choose cremation is the exorbitant cost of a funeral. In this case, offering financial assistance goes a long way. Indeed, we must go out of our way to help them in any way we can. It can be a huge expense, says Rabbi Moscovitz, but it is also one of the easiest causes for which to raise money because people are often willing to help in such situations.

Rabbi Chaim Shaul Bruk, head shliach of Montana, attests to this. He was awakened one morning to a call about the passing of a Jewish person with whom he had been in contact, and who lived far from any Jewish community. The widow informed him that she was considering cremation for her husband. Rabbi Bruk, who knew the family, gently asked why. When she did not respond, he surmised that it was about money. He kindly told her, "Your husband lived as a Jew for more than sixty years, let's do the right thing by him and give him a Jewish burial. I will take care of all the expenses." She burst into tears and could not thank him enough. She promised to pay it back as soon as the life insurance money came through. Rabbi Bruk traveled several hours to perform the taharah and to bring him to kever Yisrael and charged all the expenses to his credit card. Upon his return to his community, he was able to raise most of the money without difficulty. Several months later, the life insurance came through and the widow reimbursed the entire sum. In the end, Chabad of Montana came out ahead.

Rabbi Bruk observes that when we take care of Hashem's

children, He shoulders the expenses. Of course, it was difficult, he conceded. Taking on such debt is beyond Chabad of Montana's usual budget. But when we are dealing with nefashos, we don't play games. As his wife, Mrs. Chavie Bruk, told him that morning, will we deny a Jew kever Yisrael for a few dollars? If we can't take that risk, says Rabbi Bruk, what are we doing on shlichus?

4.

Determination

This final step is not one that you can take in advance, but you can prepare yourself for it by contemplating the subject in advance so that you are up to the challenge when the time comes.

Saving a Jew from cremation and arranging for a Jewish funeral entails true passion, a willingness to help, a healthy dose of resourcefulness, and most importantly, dogged determination. Success in shlichus often requires determination, but especially in these situations. When you first call, expect to be met with dismissive finality and with a healthy dose of resentment. You must develop a thick skin and push past the resistance. Push delicately, but persistently. If there is any chance of success, it can only come if you persist.

This is exemplified by the work of Rabbi Dovid Begun, shliach to Cheviot Hills, California. He once received a call from a non-Jew informing him that his Jewish work colleague had passed away



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and was about to be cremated. Rabbi Begun requested and received the family's contact information, in this case, the deceased's non-Jewish ex-wife. When he first called her, she was dismissive and said that she had no intention of changing her plans. Rabbi Begun offered to pay all the expenses, but she still refused.

Rabbi Begun contacted the person who had originally called him and asked him to talk to the ex-wife. The man agreed and called back two minutes later to say that the ex-wife was willing. However, because she was not the trustee of the will, she

was not authorized to make the final decision. The trustee was the deceased's cousin. Rabbi Begun asked for the cousin's number and then called the crematorium to put the cremation on hold. He was told that only the ex-wife had the authority to stop the cremation, and Rabbi Begun found himself talking to her again. This time she agreed to call the crematorium and put the cremation on temporary hold. At this point, Rabbi Begun contacted the cousin, who did not understand the importance of burial and refused to authorize the expense. Rabbi Begun explained that he was prepared

to cover all the expenses and make all the arrangements. All the cousin would need to do is authorize it. This, the cousin was willing to do.

Rabbi Begun saved a Jew from cremation, but he still needed the deceased's Jewish name. The cousin told him that the deceased had never belonged to a synagogue and the only time he had ever attended Jewish classes was during a brief prison term. Rabbi Begun contacted Aleph Institute, who put him in touch with the shliach who serves as a chaplain in that prison. It turned out that this shliach was well acquainted with

the deceased and had his name on file.

*Ashreinu, ma tov chelkein*u that we have the opportunity to save Hashem's children. Here was a Jew who never pursued any contact with Yiddishkeit. But on the two occasions that he needed it most, the Ribono Shel Olam arranged for his path to cross with the Rebbe's shluchim and they saved him. *"Yesh koneh olamo beshaa achas."*

May we merit the coming of Mashiach speedily in our days when *bila hamaves lanetzach umachah Hashem dimah mei'al kol panim.* 🇺🇸